IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE ACCRA, CRIMINAL COURT 1, ACCRA PRESIDED OVER BY HER LADYSHIP JUSTICE RUBY ARYEETEY, AND DELIVERED ON 7TH APRIL, 2025

SUIT NO: CR/0020/2023

THE REPUBLIC

VS.

DANIEL KATSEKPOR

SUMMING UP NOTES

Ladies and Gentlemen of the Jury, we have reached a critical stage in this trial and my duty this afternoon is to summarize the evidence presented during this trial and explain your duties as jurors to you. I will also highlight the relevant laws, and explain how these laws relate to the evidence you have heard so far. You have already heard the closing statements from Counsel for the Republic and Counsel for the Defendant.

I am the Judge of the law; thus, I will be guiding you on matters of law. However, it is up to you to determine the facts, because you are the judges of the facts in this case and the fate of the accused rests with you.

DUTY OF THE JURY

Under the principles of our criminal justice system, you, as jurors in this trial, I must emphasize, are the exclusive judges of the facts. This means that after hearing the evidence from all witnesses and the defendant, it is up to you to decide what you consider credible and believable.

It is therefore your responsibility at this point to decide whom to trust and the degree to which you believe or doubt the testimonies of the witnesses as you observed their individual presentations in court.

Furthermore, as the judges of fact, as I have previously mentioned, you should feel free to disregard any comments or observations I may offer in this summing up process. Take note that while I have the right and responsibility to offer observations or comments as I deem necessary, you, the jury, are not bound by any such remarks during this summing up.

Ultimately, your decision regarding the guilt or innocence of the Accused must be based entirely on your careful consideration of the evidence presented in court and the legal guidance I provide.

You must also do well to disregard any information you may have encountered outside of this courtroom.

I want to stress that this is a trial, and your task is to reach a verdict based on the evidence presented. Specifically, your responsibility is to decide whether the Accused is guilty or not guilty of the particular crime he is charged with in this case. It must therefore be a unanimous/majority verdict of either guilty or not guilty.

BRIEF FACTS

The brief facts of the case are that the suspect Daniel Katsekpor is a 32-year-old Mason and resident of Estate Junction, Sakumono and the boyfriend of the Deceased Maybel Adza. On 30th August 2021, one Emmanuel Awuni reported that he found the lifeless body of a female lying by the road leading to his home at Kennife Close in Community 22, Tema. Police visited the scene and discovered the body of the Deceased in a prone position. The crime scene was fumigated and the body of the Deceased was thereafter deposited at the Police Hospital mortuary for an autopsy to be conducted. The Deceased's mobile phone was found at the scene but all call

records had been deleted thus, it was necessary to obtain a Court order to obtain itemized call records from MTN Ghana.

The call records placed the Deceased in the suspect's house between 10.33pm on 29th August, 2021 and 1.41pm of 30th August 2021. During investigations, the sister of the Deceased Gloria Adra informed the Police that they lost their maternal grandfather thus all the family members gathered at Have in the Volta Region for the one-week celebration. On 29th August, 2021 the family members returned to Accra, however the victim did not come with them. She added that she tried to contact her sister but she was not successful thus she went to the sister's kiosk in Community 22 but met her absence so she decided to pass the night in the Kiosk with her roommate by name Precious. She stated that, she left for work the next day 30th August, 2021 and her sister was still unreachable.

She added that it was not until 31st August 2021 when she received a call from the suspect informing her that he had been informed that a body had been discovered at Community 22 hence she should go there to find out if it was the Deceased as she had not been seen for a while. She stated further that on her way to the scene, Precious called and confirmed that the body was that of her sister Maybel. She added that she went to the scene and identified the body before calling the rest of the family to inform them about the death.

She stated further that the suspect informed her that the victim was with him until the morning of 30th August, 2021 when she received a call from someone and left his place soon after. According to the suspect in his statement dated 21st September, 2021, he met the victim sometime in 2021 when she visited the construction site where he worked. He added that, on 30th August, 2021 the victim called him around 7.00am and informed him that she was around Lashibi and wanted to pay him a visit. He added that as soon as she arrived, she received a phone from someone and he heard her say she was not home and she left soon after the telephone call. He changed the

testimony and stated that the victim called him at about 11.00pm on 29th August, 2021 and informed him that she would like to visit him.

Thus, he went and met her at the bus stop and took her to his room, where she spent the night until about 6.30am when she received a call. He added that she decided to leave and he escorted her to the bus stop and waited until she boarded a bus towards Ashiaman. He stated further that he left for work at about 7.00am. When he returned from work, he tried calling the victim but he could not reach her. On the same day he gave his investigation caution statement to the Police. He stated that the victim called him on 29th August 2021 and informed him that she was returning from Have in the Volta Region and would like to visit him. She called around 10.00pm and indicated that she was at the bus stop so he went and fetched her.

He stated further that they spent the night together and he left for work at about 7.00am leaving the Victim alone in the room. When he returned from work around 6.00pm, he discovered the victim lying on the floor. He stated further that he tried calling her but there was no response and she was stiff. He stated that he engaged the help of a taxi driver to convey the body of the Deceased to Community 22 where she stayed. He added that he intended to take the body to her abode or a Police station however he was afraid and therefore abandoned the body. He added that there was blood and saliva from both sides of her mouth.

A post-mortem examination was performed on the body of the Deceased by C/Supt. Dr. Osei Owusu Afriyie, a Pathologist at the Police Hospital on 1st September, 2021. He determined the cause of death as (a) Asphyxiation; (b) Strangulation; and (c) Assault (unnatural death).

The Accused person has been charged with the offence of Murder created by section 46 of the Criminal Offences Act, 1960, (Act 29) as amended by Act 1101 which section also prescribes the punishment for the offence. The section provides as follows as has already been mentioned by Prosecution in her address:

"A person who commits Murder is liable on conviction to life imprisonment"

The offence of Murder is defined by section 47 of Act 29 as follows:

> ***"A person who intentionally causes the death of another by an unlawful harm commits murder unless the murder is reduced to manslaughter by reasons of an extreme provocation, or any other matter partial excuse as mentioned in section 52".***

From the definition of Murder, there are certain elements that Prosecution must prove beyond reasonable doubt if it must succeed in this trial. In other words, there are certain acts that Prosecution must prove beyond reasonable doubt that the Accused person has done before you can return a verdict of murder against the Accused. These are: -

1) That the deceased person, Mabel Adrah is dead.
2) That she died as a result of harm caused to her
3) That the harm was unlawful
4) That the harm was caused by the Accused person and no one
5) That in causing the harm, the Accused person intended the death of Mabel Adrah.

BURDEN OF PROOF

It is important for you to understand that in our criminal law Prosecution carries the burden of proving the accused person's guilt or otherwise. It is the Prosecution's duty to provide evidence that convinces you beyond a reasonable doubt of the Accused Person's guilt for the crime he has been accused of. The basic rule that Prosecution has to prove the guilt of the Accused is sanctioned by sections 11(2) of the Evidence Act 1975.

> ***11 (2) In a criminal action the burden of producing evidence, when it is on the prosecution as to any fact which is essential to guilt, requires the prosecution***

to produce sufficient evidence so that on all the evidence a reasonable mind could find the existence of the fact beyond a reasonable doubt".

The prosecution must fulfil its duty by presenting evidence that fully convinces you, the jury, that the accused is guilty. Their evidence must meet your standards of belief and leave no reasonable doubt in your minds.

The evidence the prosecution has presented to you must be strong enough, that, when you consider it, you should not be left with any reasonable doubt about the Accused's guilt regarding the specific crime he is being tried for.

This is a fundamental principle of law regarding the burden of proof, and it is crucial for you to keep this in mind while you deliberate on the case before you.

It is important for you to understand that under our law, the Accused has the right to remain silent and not present a defense. However, even if the Accused elects to do so, the prosecution still has the full responsibility to prove the Accused's guilt with sufficient evidence that leaves you with no reasonable doubt. If the Accused decides to remain silent, this does not imply guilt. Legally, it simply means that the responsibility to prove the accused's guilt lies entirely with the prosecution or the State. This principle is reinforced by Article 19(2)(c) of the 1992 Constitution which stipulates that: -

> "**A person charged with a criminal offence shall be presumed to be innocent until he is proved or has pleaded guilty"**

Ladies and gentlemen of the jury, I shall now discuss the elements vis-à-vis the evidence adduced by both sides.

1) **That the deceased person, Maybel Adrah is dead.**

There is no doubt that Mabel Adra is dead. Prosecution in discharging its burden of proof called seven (7) witnesses and they all testified that Maybel Adrah is dead. The

Accused person in his testimony did not dispute this fact. PW1 was the first to see the body of the deceased lying in a prone position on 30th August, 2021 at about 8:30pm and informed PW2. They reported to the Police and PW5 followed upto the crime scene with two of her colleagues but the body was picked the following morning due to COVID protocols. Before the body was removed, PW4 went to the crime scene and identified the deceased as her sister. PW5 and two of her colleagues removed the body from where it was found and sent to Police Hospital morgue for preservation, identification and post-mortem. She also showed photographs of the deceased as Exhibit A and A1.

PW3, the deceased biological Aunty identified the body for post-mortem and PW6, the Pathologist stationed at the Ghana Police Hospital performed the post-mortem examination on the deceased. He tendered in evidence the post mortem report as Exhibit G.

Accused person testified that on the 30th of August when he closed from work and came home, he found the deceased lying unconscious on the floor with her face to the ground in a room upstairs. He called her several times but she did not respond so he took her right hand up and it was stiff. He called his friend Dovene to come up, Dovene raised her hand up and saw blood stains and said the deceased might have been dead long before then.

2) **That she died as a result of harm caused to her**

Harm is defined by section 1 of the Criminal Offences Act,1960 Act 29 as *"…a bodily hurt, disease or disorder, whether permanent or temporary".* Ladies and Gentlemen of the jury, you will recall that PW5 testified that after PW1 and PW2 lodged a report at their station they followed up and secured the scene, since it was in the night. The following morning, they obtained an order from the Ashiaman Municipal Council to fumigate the scene and the body. After which she examined the body. The body was

lying in prone position. When they turned the body to have a closer look, they realized that there was blood stain at both cheeks of the deceased.

A Pathologist stationed at the Ghana Police Hospital performed the post-mortem examination on the deceased. He concluded the course of death as asphyxiation due to strangulation and the manner of death as unnatural. He gave a summary of the post mortem report which he tendered in evidence as Exhibit G that the deceased had marks of violence including scalp swelling, bruises and swelling on the upper limps, bruises and swelling on the face, ligature mark around the neck. Other findings included bleeding over the brain, swelling of the brain on which he concluded as a blunt head injury. She also had a gash of blood in the eyes, which is usually associated with compression of the neck. And, she had hyper inflated lungs consistent with holding of air in the lungs or trapped air in the lungs.

The Accused on the other hand testified that he found blood mixed with foam coming out of the deceased mouth when he arrived home and found her stiff.

It is therefore your decision to determine whether the deceased died through harm based on the evidence I have produced above.

3) That the harm was unlawful

Ladies and Gentlemen of the jury, the third essential element Prosecution must prove in this case is that the harm which caused the death of Maybel Adra was unlawful. The Prosecution has already told you what harm is in law but I will reiterate same. Harm is said to be unlawful under section 76 of Act 29 which is intentionally or negligently caused without any justification known to the law. The justifications known to the law which can be found in Sections 30 and 31 of Act 29 are provided here. Section 30 reads thus: -

(1) For the purpose of this Act, Force or harm is justifiable which is used or caused in pursuance of a matter of justification and within the limits that are provided for in this chapter.

(2) In the remainder of this chapter, expressions applying to the use of force apply also to the causing of harm, although there may only be expressly mentioned.

Section 31 also provides that: -

"Force may be justified in the case and in the manner, and subject to the conditions provided for in this chapter, on the grounds:

a) Of express of authority given by an enactment; or
b) Of authority to execute the lawful sentence or order of a court; or
c) Of the authority of an officer to keep the peace or of a court to preserve order; or
d) Of an authority to arrest and detain for the felony; or
e) Of an authority to arrest, detain, or search a person otherwise than felony; or
f) Of a necessity for the prevention of or a defense against a criminal offence
g) Of a necessity for defense of property or possession or for overcoming the obstruction to the exercise of unlawful rights; or
h) Of a necessity for preserving order on board a vessel; or
i) Of an authority to correct a child, servant or other similar person for misconduct; or
j) Of the consent, of person against whom the force is used".

Having read the above sections carefully, it is obvious the Accused person herein did not call to his aid the defense of justification. His defense is that the deceased

visited him and spent the night with him on 29th August 2021. In the morning of 30th August when he was leaving home for work, she was alive. He arrived in the house and climbed to the first floor of the building where he left the deceased. Upon entering the room, he found the deceased lying unconscious on the floor with her face to the ground. This, means he knew nothing about the harm by which Maybel Adrah died.

It is therefore your decision based on the evidence adduced and the law to determine whether the harm which caused the death of Maybel Adrah was unlawful.

4) That the harm was caused by the Accused person and no one

Prosecution's first and second witnesses who found the body of the deceased did not know the Accused person. PW3, Maybel's aunt who raised her did not mention the Accused in her testimony. It is quite obvious from the evidence adduced by the other Prosecution witnesses which I will summarise to you that there was no eye witness account leading to the person who killed the deceased. In the absence of any eye witness account, Ladies and Gentlemen of the jury, the Prosecution's case is hinged mainly on circumstantial evidence.

Circumstantial evidence, Ladies and Gentlemen represents facts from which one may possibly determine the existence or non-existence of a certain event, or proving something through inference. This means that it does not arise from personal or first-hand knowledge. The case of STATE VS ANANE FIADZO [1961] GLR 416 held that: *"presumptive or circumstantial evidence is quite usual as it is rare to prove an offence by evidence of eye-witnesses and inference from the facts may prove the guilt of the Appellant. A presumption from circumstantial evidence should be drawn against the Appellant only when that presumption follows irresistibly from the circumstances proved in evidence and in order to justify the inference of guilt the inculpatory facts must be incompatible with the innocence*

of the Appellant, and incapable of explanation upon any other reasonable hypothesis other than guilt. A conviction must not be based on probabilities or mere suspicion".

PW4, testified that Maybel was her elder sister and she told the court how she got to know Accused person. On the 26th August, 2021, she went to work and, on her return, did not meet her sister, Maybel at home. She called and found her behind the building with the Accused person seated opposite where the Accused person works as a mason. The deceased then introduced the Accused person to her as her new friend.

A week prior to the incident, the deceased had called that she, PW4 should come and visit her so that she will get to know where she lives. From then, every morning she commuted to work from where the deceased lives. On Thursday when she got home, she met the deceased at the Accused person's place. The deceased she told her that, family members had informed her that their grandfather was unwell and so she should go and take care of him. The following day when PW4 got to work, she had a call from her mother that she and her uncle had arrived at the village and that the old man had passed on. She called the deceased and informed her. The deceased then left for the village because her first born was staying with their grandfather. On Sunday evening her mother arrived from the village and told her that the deceased was still at the village because when she stopped a vehicle, she did not see her so she left money behind and left. PW4 slept at the deceased place with a girl she was living with who is an apprentice called Precious. The following morning, which was a Monday, she left for work. At about 3pm, her mother called that they were calling the deceased' number but she was not responding. She also called her line which was going through but there was no response. She asked the lady apprentice who was living with the deceased (called Precious) if she had Accused persons number but she answered in the negative. She rather knew the number of a friend to the Accused person which she gave to her. PW4 called this friend and introduced herself to him as the deceased's younger sister and that they had been calling the deceased

person's line without success. She asked if he could give her the Accused person's number to enquire whether he had seen the deceased person. When she got the Accused person's number she called Accused person three times but he did not respond. Later she called the Accused person and he responded to the call. The Accused person told her that the deceased came to him on the said Monday morning but whiles there, she had a call and left immediately she received the call. The following morning which was a Tuesday when she got to work, the Accused person called and asked whether she could go to Community 22, right away. The Accused added that his foreman had informed him that someone has been murdered so she should go and check who the person was. She in turn asked Accused to go since he was also in the area but he replied that he was going to work at Adenta. The Prosecution urged on you to ask yourselves why the Accused associated the deceased with murder. PW4 said she left her workplace and whiles on her way Precious called that she had arrived at the scene and that it was her sister. When she got there it was her sister who had been murdered. She called her stepfather and informed him of what had happened as well as the rest of the family members.

PW5 Dectective Chief Inspector Liticia Mensah Siabi stationed at Cantonments Divisional Head Quarters, in the year 2021 was stationed at Community 22 Police station, Tema. On 30th August, 2021 at about 9:45pm she was on duty at Community 22, Police station as the investigator for the night when a complaint was lodged concerning a young lady later known to be Maybel Adra, the deceased. Her lifeless body had been found on the street, at Community 22, Tema, a street leading to the kiosk where she lived and then a road on the same path to complainant's abode.
After the complaint was lodged PW5 followed up to the scene of crime in the company of two of her colleagues and the complainant. When they got to the scene, the body of the deceased was lying down on the road as reported. The deceased was not moving and breathing and since it was the period of COVID, PW5 could not

touch the body immediately. They secured the scene because it was in the night. The following morning she obtained an order from the Ashiaman Municipal Council to fumigate the scene and the body. She examined the body which was lying in prone position. When they turned the body to have a closer look, they realized that there was blood stain at both cheeks and her hand bag was under, the body. They picked the hand bag and saw her mobile phone. The phone was on but the call log was deleted. Thereafter, the body was removed to Police Hospital Morgue for perseveration, identification and post-mortem.

Later, the body was identified by Bright Nyasem (PW4), the deceased' biological Aunty. An order was obtained from Ashiaman District Court to MTN Company for the deceased' itemized bill. Statements were also obtained from some of the family members and friends including the Accused person.

According to PW5, when the Accused person was first interrogated, he made it known to the Police that the deceased was his girlfriend and that she visited him on the 30th of August 2021. She first called that she visited someone at the area and wanted to see him. She came to him but after receiving a call she left his place. PW5 later revisited the scene and talked to people living around the scene to check from them if there was anything unusual prior to the time the body was discovered but none of them was able to recollect any unusual noise in the vicinity. There was no dog barking and there was no noise at that time.

She then extended her investigation to Have where the deceased was on 29th August, 2021 and decided to spend the night. However, she was informed that during the night the deceased received a call and decided to leave to Accra. Upon receipt of the results of the itemized bill which PW5 tendered in evidence as Exhibit C, she checked and realized that the deceased was in the abode of the Accused person from 29th August 2021 till 30th August, 2021 and the last record showed that at about 1:43 pm on 30th August 2021 the deceased was still in the abode of the accused person.

However, around 7:30pm the phone indicated that she was around Ashiaman Underbrigde and then the subsequent date and time were all within Ashiaman Municipality. The final time indicated that she was at Community 22 the scene where the body was found.

She got the accused person formally arrested and cautioned him. In his caution statement he stated that the deceased visited him on 29th August 2021, spent the night with him and left his place at 7:30am on 30th August, 2021. He changed his statement again, and was cautioned for the second time and he stated that the deceased spent the night from 29th till 30th in the morning when he went to Adenta and the deceased was in his room alone. He returned around 6:30pm and found the deceased lying on the floor lifeless and that he went closer to her, touched her but he realized that the deceased' body was stiff. He also noticed blood stain at the two sides of the mouth that means the two cheeks.

In the course of investigation, PW5 visited the Accused person's abode, it was an uncompleted storey building. Some tenants were at the ground floor, Accused was the only one upstairs in the room. Accused person's room is completed, tiled, has glass windows and a secured door. The investigation established that all the windows were intact including the door, there was no break in and the accused made it known to her that he was the only one who lived in that room before the arrival of the deceased. She looked around and Accused person showed her where he found the deceased when he returned from work. There was only one mattress in the room. PW5, showed photographs she took of the scene and accused person. They were Exhibit A series- A and A1, Exhibit B series -Exhibit B, B1 and B2.

After this Accused led her to the ground floor, to one Kwame's room where he kept his bag. She also tendered the three statements she obtained from the Accused person as Exhibits D, E and F. PW5, concluded that although, there were no blood stains found on the mattress nor the bed sheet, Accused person showed to her, and she did not get anything incriminating in Accused person's belongings, her

investigations established that Accused was not consistent in all the three statements he gave to the Police which means he was not truthful.

She also answered during cross-examination that she did not conduct finger print check on the body in order to compare same with that of the Accused because she is not a finger print expert and in carrying out investigations such as this in a suspected murder case, it is not part of Police instructions and as practice by investigators to cause finger print checks to be done in order to discover who actually caused the death of the deceased. She added that from her experience finger prints are not lifted on a body but only on smooth surfaces. She further added that since Accused was the very person who picked the body, and then carried it with the help of the taxi driver, there was no need for a finger print expert. She said the cause of death proved that the deceased died unnaturally and the cause of death was given by the pathologist as strangulation due to assault.

You will recall, Ladies and Gentlemen of the jury that you questioned the PW5 whether through her investigations she found that Accused person had any misunderstanding with the deceased but she said nothing of that nature was received. She also answered that the Accused person refused to disclose the taxi driver who helped him to convey the body because he actually did not know him and because he was in a rush, he could not take the taxi's registration number.

PW7's testimony did not add anything much to PW5's testimony because after the case was re-assigned to her for investigation, she only took the charge caution statement from the accused. Investigation was concluded by the initial investigator before the case was handed over to her.

At this juncture, Ladies and Gentlemen, the above is the Prosecution's evidence from which they point to the Accused person as the one who caused the death of Maybel Adrah. You have to consider whether or not there is sufficient evidence from which

you can reasonably conclude or decide that it was the Accused person who caused the harm as reported by the Pathologist to Maybel Adrah which led to her death.

Apart from the circumstantial evidence Prosecution adduced linking the Accused to the crime, it is important to also point out to you, Prosecution's reliance on the inconsistent statements of Accused.

I must point these things out, because, in Ghana, the law, as stated by the Supreme Court in the case of **State v Brobbey and Nipa [1962] 2 GLR 101** is that:

> "In a case where the evidence is purely circumstantial and establishes nothing more than suspicion, the judge must draw attention to the necessity of some piece of evidence that is more than mere suspicion and which would lead to one conclusion and one conclusion only, that is, to the guilt of [the accused person]. One cannot put a multitude of suspicions together and make proof of it. For circumstantial evidence to support a conviction, **it must be inconsistent with the innocence of the accused, and must lead to the irresistible conclusion not only that the crime charged has been committed, but that it was in fact committed by the person or persons charged and by no other person;** in other words, the evidence on the whole must exclude the probability that the alleged crime could have been committed by some other person or persons other than the person or persons before the court."

I will now turn to Accused person's defence. The Accused person I must indicate to you served prior notice of his intention to call witnesses by filing witness statements. However, his witnesses failed to turn up after some adjournments. The Accused person mounted the witness box and testified admitting that the deceased visited him on the night of 29th August 2021 and in the morning of 30th August when he was leaving for work she was alive. Early that morning the deceased said she will bath with warm water so they went to the ground floor to the back of the building and set up fire. When they got there, they met Kwame Gboholo his co-worker who lives in a

room downstairs. Upon seeing each other, the deceased hugged Kwame Gboholo and he left to brush his teeth.

Accused explained that they are masons who live in the building with their master and two other apprentice carpenters. They all sleep downstairs but the room is too small so at night they erect mosquito net in a large open hall attached to their rooms. He testified that on 29th August, 2021, the deceased arrived at 10:30pm and because Kwame was already asleep in the common room, he went to the office in the next compound to pick the key to the room upstairs and spent the night with the deceased there.

He continued that that weekend it was only himself and Kwame who were left in the house because the other occupants did not return home. When he was leaving the next morning, the deceased wanted to wash his dirty clothes so he left her behind and went together with Kwame. They closed from work around 4:00pm that day. However, they came by different routes and he got home before Kwame. You have been urged to ask yourself why the two came through separate ways when they were coming to the same house. Upon reaching the house he climbed to the first floor to the room where he left the deceased. He found the deceased lying unconscious with her face to the ground. Upon seeing her he called her several times but she did not respond so he took her right hand up and saw it was stiff. At the time Kwame had still not reached the house. He put her in a sitting position, but she was stiff with blood mixed with foam coming out of her mouth.

Accused person testified that he became afraid that she was dead so he descended to the ground floor and went outside of the house to call a guy named Dovene. They went together to the room and Dovene raised the hand of the deceased and saw blood stains. He said that the deceased might have been dead long before then. They carried the deceased downstairs and took a Taxi to send her to Hospital. They

passed through her place of abode to see if they could get someone to accompany them them to the hospital but did not see anyone in the kiosk the deceased lived in.

The driver upon realizing they did not know any relative who could accompany them to the hospital became afraid that he could be arrested for carrying a dead body in his car. Accused said he was also highly confused not knowing what exactly to do. He took the body out of the car and left it beside the road at Community 22, not far from the deceased' place of abode.

Ladies and Gentlemen of the jury, in Counsels for the Accused person in his submission stated that Prosecution failed to determine or identify the person who caused the death by simply taking fingerprint on the body of the deceased as well as the one who deleted the call logs from the phone. Also, that Prosecution never contacted his other workers and employers of the Accused to confirm the date and time he said he went to work.

PW5, stated that her investigations established that Accused was not consistent in all the statements he gave to the Police. That means he was not truthful. Indeed, in Accused person's first statement he stated that the deceased left his place of abode in the morning of 30th August, 2021. However, in his subsequent statements he maintained that he left the deceased for work and returned to find her body stiff. These last two statements were however not very different from his evidence in court.

5) **That in causing the harm, the Accused person intended the death of Maybel Adrah.**

Section 11(1) of Act 29 stipulates that a man intends the natural and probable consequences of his acts. It is often difficult or incapable to prove intention. Intention is usually inferred from already established facts. In establishing that the Accused

intentionally caused the death of Maybel Adrah, Prosecution led evidence to show that the Accused person was the last person the deceased had contact with before her death. The Prosecution has urged on you that, it was accused who caused her death due to strangulation which caused ligature marks on her neck as per the autopsy report. Prosecution has addressed you on why Accused erased the call logs. Prosecution has also disputed Accused person's mention of Dovene whom he never mentioned in any of his statements. Again, Prosecution submitted that the body of the deceased was fresh at the time Accused took the taxi. They have urged on you to dismiss these testimonies of Accused person as untrue because he is not a credible witness due to consistencies in his statement.

Accused person on the other hand has adduced evidence that he found the deceased dead in his room after leaving her there alive and being afraid deposited the body by the roadside near her kiosk. Thus, he had nothing to do with her death because he left her in his room alive. They have submitted and urged on you that Prosecution relied on indirect evidence with so many rooms for questions that anybody else could have caused the death of the deceased.

As you consider your verdict, each of you must ask yourself: Has the prosecution's evidence convinced me that the Accused is guilty beyond a reasonable doubt? Or do I still have some reasonable doubt about the Accused's guilt based on the evidence presented? Do not forget that the law says that indirect evidence may sometimes be the best evidence considering the circumstances.

Before you even begin to consider the Accused's defence, you must first evaluate whether the prosecution has presented concrete evidence through their witnesses and exhibits to persuade you of the Accused's guilt. This would be true even if the Accused had chosen not to say anything in his defence. Infact, do not forget that the Accused has no obligation to prove his innocence, his only obligation is to raise a reasonable doubt as required by law.

After reviewing all the evidence presented by the prosecution, if you are not fully convinced that the accused is guilty, then your verdict must be 'not guilty'. This means the prosecution has failed to meet the requisite burden of proof.

If, after considering all the evidence, you find that there is any reasonable doubt in your mind about the Accused's guilt, then your decision should also be 'not guilty'. A reasonable doubt is enough to prevent you from convicting the Accused.

The other important responsibility you have as jurors that must be taken into account is the defence presented by the Accused. If you believe the Accused's explanation of events, or if the evidence Accused person gave persuades you, then your verdict should be 'not guilty'.

Even if, after considering the Accused's testimony, you do not believe his defence to be entirely true, you should still ask yourself whether his defence is reasonably probable. If you find that the defence is plausible based on the evidence, then you should again return a verdict of 'not guilty'.

Before you consider the defence presented by the Accused, you must first ensure that the prosecution has presented enough evidence to take their case beyond mere suspicion or guesswork. You should ask yourselves whether the prosecution's evidence is based on solid facts and not just assumptions or conjectures.

The prosecution must not only prove the actual occurrence of the event described, but they must also prove beyond a reasonable doubt that none other but the Accused who committed the act in question, which led to this trial.

Ladies and gentlemen of the jury, I have, so far, summed up to you, the evidence adduced in this case. I have also drawn your attention to the questions asked by counsel for the Accused Person which were asked with the intention of creating reasonable doubt in your minds. I have also explained the applicable laws to you.

You are required to apply the law to the facts and reach a verdict. In so doing, you are to consider all the evidence you have seen and heard at the trial. You shall disregard anything you may have heard elsewhere about the case. I have not, by this summing up, nor, by any ruling or expression during the trial, intended to indicate my opinion regarding the facts or outcome of the case. If I have expressed any opinion on the facts, you are entitled to disregard it.

You shall at this stage retire to consider your verdict. If you require any further directions in your deliberations, you are at liberty to return to me for it.